

**SUBSTITUTE FOR
HOUSE BILL NO. 4486**

A bill to prohibit municipalities from imposing a ban on the use of natural gas or propane or the installation of natural gas infrastructure or propane infrastructure; to provide for the powers and duties of certain local governmental officers and entities; and to provide that certain local ordinances, resolutions, or policies are void and unenforceable.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. As used in this act:

2 (a) "Governing body" means the body in which the legislative
3 powers of a municipality are vested.

4 (b) "Municipality" means a county, city, village, or township.

5 (c) "Natural gas infrastructure" means any equipment,
6 facility, or building used in the transportation or distribution of



1 natural gas.

2 (d) "Propane" means a hydrocarbon whose chemical composition
3 is predominantly C_3H_8 , including liquefied petroleum gases,
4 renewable propane, and any mixture of both liquefied petroleum
5 gases and renewable propane.

6 (e) "Propane infrastructure" means any equipment, facility, or
7 building used in the transportation or distribution of propane.

8 Sec. 3. Beginning on the effective date of this act, the
9 governing body of a municipality shall not adopt or enforce an
10 ordinance, resolution, or policy that prohibits any of the
11 following:

12 (a) The use of natural gas or propane in that municipality.

13 (b) The installation of natural gas infrastructure or propane
14 infrastructure in that municipality.

15 Sec. 5. Any provision in an ordinance, resolution, or policy
16 adopted by the governing body of a municipality on or after the
17 effective date of this act that violates section 3 is void and
18 unenforceable.